

STATE OF COLORADO

Bill Owens, Governor
Douglas H. Benevento, Acting Executive Director

Dedicated to protecting and improving the health and environment of the people of Colorado

4300 Cherry Creek Dr. S.
Denver, Colorado 80246-1530
Phone (303) 692-2000
TDD Line (303) 691-7700
Located in Glendale, Colorado

Laboratory and Radiation Services Division
8100 Lowry Blvd.
Denver, Colorado 80230-6928
(303) 692-3090

<http://www.cdphe.state.co.us>



Colorado Department
of Public Health
and Environment

RECEIVED MAIL ROOM 11/14/02 9:03 AM

October 15, 2002

Mr. Steve Mossberg
Compliance Manager, U.S. Operations
Cemex
5134 Ute Highway
P.O. Box 529
Lyons, Colorado 80540

Mr. Mossberg:

This letter is in response to a complaint investigation conducted at Cemex's Lyons Plant on October 1, 2002. At the time of the inspection, skies were clear and winds were approximately 0-5 mph. Though no fugitive dust was observed to be blowing off-site during the inspection, there are some areas that the Division sees as potential sources of fugitive dust that may be impacting Cemex's neighbors.

- The CKD pit (Lyons Quarry) uses both a sprinkler system on the perimeter and water trucks on the interior for control of fugitive dust. The sprinklers operate throughout each day and the water trucks apply water and/or calcium chloride dust suppressant as needed throughout each day. It is the Division's understanding that the sprinkler system froze during the Spring 2002 and was inoperable for an extended period of time due to a delay in receiving the necessary parts. The Division recommends that Cemex keep spare parts for the sprinkler system on site to minimize downtime during maintenance activities.
- Piles of dust were noted under conveyor belts, kiln, dryer, etc., during the inspection. These areas have a significant potential fugitive dust impact during windy conditions, which is a frequent occurrence in the area. According to Cemex, these areas are currently cleaned up once per week. The Division recommends a more frequent schedule for housekeeping in these areas to minimize the potential for fugitive emissions.

Another area of concern to the Division is the fugitive dust generated during blasting activities at the Dowe Flats Quarry. Colorado Regulation No. 1, Section III.D.1.c., describes "Emission Limitation Guidelines for the Submission of Control Plans". This regulation states that if the Division determines that a source of activity that is subject to this section is operating with visible emissions that are being transported off the property on which the source is located and such source is subject to the no off property transport emission limitation guideline, it shall require the owner or operator of that source or activity to submit a written plan to the Division for the control of fugitive particulate emissions. Based on complaints received from the community, as well as observations made during blasting activities, the Division has determined that visible emissions are being transported off the property on which the

source is located. Based on this information, the Division is requesting that Cemex develop a fugitive dust control plan for blasting activities at the Dowe Flats Quarry.

Control measures and operating procedures to be employed may include, but are not limited to, the removal of overburden prior to blasting, watering down the blast area both prior to and as soon as practicable after blasting, or other equivalent methods or techniques approved by the Division (Regulation No. 1, Section III.D.2.i.). The Division recommends that the fugitive dust control plan include the use of a wind direction and wind speed monitoring device. Through the use of this device, blasting would not occur under either of the following circumstances: wind direction is from 180° to 0° or wind speed greater than 30 mph.

Please provide a response to the concerns regarding the CKD pit, housekeeping activities, and the fugitive dust control plan for blasting in the Dowe Flats Quarry, to my attention at the Division, ***within 60 days of receipt of this letter.***

If you have any questions, or require any further information, please contact me at (303) 692-3259.

Sincerely,



Shannon L. McMillan
Environmental Protection Specialist
Air Pollution Control Division

Cc: Bob Jorgenson, APCD
Margie Perkins, APCD
Paul Carr, APCD
Gabi Hoefler, Boulder County Health Department
Richard Cargill



March 21, 2003

CERTIFIED MAIL

Shannon McMillan
Colorado Department of Public Health and Environment
Air Pollution Control Division
APCD-SS-B1
4300 Cherry Creek Drive South
Denver, CO 80246-1530

RE: Revised Dust Control Plan, Blasting

Dear Ms. McMillan:

CEMEX Inc., Lyons Cement Plant is including in this letter the items for the Fugitive Dust Control Plan for explosive blasting activities at the Dowe Flats Quarry. These measures will be included in the next modification to Permit # 95OPBO082. These dust control measures include, but are not limited to:

- Sequential blasting shall be employed.
- Blasting will normally occur between the hours of 10:00 a.m. and 2:00 p.m. unless otherwise required by MHSA or personnel safety reasons.
- Weather forecast and current weather conditions will be monitored closely. No shot will be loaded if sky conditions are forecast to be overcast or are overcast. Blasting will not occur if wind speeds are forecasted to be 20 m.p.h or greater unless otherwise required by MSHA or personnel safety reasons.
- It is the Company's intention to follow the dust control measures, however, blasting may occur outside the above stated parameters due to unforeseen circumstances or personnel safety reasons which would be noted in the blasting log.
- A blasting log will be kept with a column for notations to attempt minimize fugitive dust. The log will include the day and time of the blast, wind speed and weather conditions. The log is also to include documentation of conditions that were not anticipated that may have led to fugitive dust conditions
- Regulations of the Mine Safety and Health Administration, Alcohol Tobacco and Firearm, and Department of Minerals and Geology will be complied with for blasting and shall supercede these Fugitive Dust control measures for blasting in the event of conflict.

Thank you for your cooperation in this matter.

Sincerely,

Steve Mossberg
Compliance Manager

RECEIVED
MAR 24 2003
AIR POLLUTION CONTROL
STATIONARY SOURCES PROGRAM

United States Operations

P.O. Box 529, Lyons, Colorado 80540, USA, Phone: (303) 823-2100, Fax: (303) 823-2199

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Colorado Department
of Public Health
and Environment

CERTIFIED MAIL 7001 1140 9003 9037 875

October 15, 2002

Mr. Steve Mossberg
Compliance Manager, U.S. Operations
Cemex
5134 Ute Highway
P.O. Box 529
Lyons, Colorado 80540

Mr. Mossberg:

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- The CKD pit (Lyons Quarry) uses both a sprinkler system on the perimeter and water trucks on the interior for control of fugitive dust. The sprinklers operate throughout each day and the water trucks apply water and/or calcium chloride dust suppressant as needed throughout each day. It is the Division's understanding that the sprinkler system froze during the Spring 2002 and was inoperable for an extended period of time due to a delay in receiving the necessary parts. The Division recommends that Cemex keep spare parts for the sprinkler system on site to minimize downtime during maintenance activities.
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Another area of concern to the Division is the fugitive dust generated during blasting activities at the Dowe Flats Quarry. Colorado Regulation No. 1, Section III.D.1.c., describes "Emission Limitation Guidelines for the Submission of Control Plans". This regulation states that if the Division determines that a source of activity that is subject to this section is operating with visible emissions that are being transported off the property on which the source is located and such source is subject to the no off property transport emission limitation guideline, it shall require the owner or operator of that source or activity to submit a written plan to the Division for the control of fugitive particulate emissions. Based on complaints received from the community, as well as observations made during blasting activities, the Division has determined that visible emissions are being transported off the property on which the

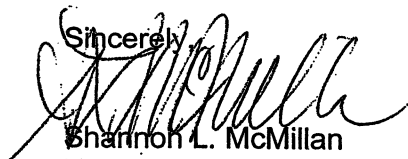
source is located. Based on this information, the Division is requesting that Cemex develop a fugitive dust control plan for blasting activities at the Dowe Flats Quarry.

Control measures and operating procedures to be employed may include, but are not limited to, the removal of overburden prior to blasting, watering down the blast area both prior to and as soon as practicable after blasting, or other equivalent methods or techniques approved by the Division (Regulation No. 1, Section III.D.2.i.). The Division recommends that the fugitive dust control plan include the use of a wind direction and wind speed monitoring device. Through the use of this device, blasting would not occur under either of the following circumstances: wind direction is from 180° to 0° or wind speed greater than 30 mph.

Please provide a response to the concerns regarding the CKD pit, housekeeping activities, and the fugitive dust control plan for blasting in the Dowe Flats Quarry, to my attention at the Division, ***within 60 days of receipt of this letter.***

If you have any questions, or require any further information, please contact me at (303) 692-3259.

Sincerely,



Shannon L. McMillan
Environmental Protection Specialist
Air Pollution Control Division

Cc: Bob Jorgenson, APCD
Margie Perkins, APCD
Paul Carr, APCD
Gabi Hoefler, Boulder County Health Department
Richard Cargill



March 21, 2003

CERTIFIED MAIL

Shannon McMillan
Colorado Department of Public Health and Environment
Air Pollution Control Division
APCD-SS-B1
4300 Cherry Creek Drive South
Denver, CO 80246-1530

RE: Revised Dust Control Plan, Blasting

Dear Ms. McMillan:

CEMEX Inc., Lyons Cement Plant is including in this letter the items for the Fugitive Dust Control Plan for explosive blasting activities at the Dowe Flats Quarry. These measures will be included in the next modification to Permit # 95OPBO082. These dust control measures include, but are not limited to:

- Sequential blasting shall be employed.
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- Weather forecast and current weather conditions will be monitored closely. No shot will be loaded if sky conditions are forecast to be overcast or are overcast. Blasting will not occur if wind speeds are forecasted to be 20 m.p.h or greater unless otherwise required by MSHA or personnel safety reasons.
- It is the Company's intention to follow the dust control measures, however, blasting may occur outside the above stated parameters due to unforeseen circumstances or personnel safety reasons which would be noted in the blasting log.
- A blasting log will be kept with a column for notations to attempt minimize fugitive dust. The log will include the day and time of the blast, wind speed and weather conditions. The log is also to include documentation of conditions that were not anticipated that may have led to fugitive dust conditions
- Regulations of the Mine Safety and Health Administration, Alcohol Tobacco and Firearm, and Department of Minerals and Geology will be complied with for blasting and shall supercede these Fugitive Dust control measures for blasting in the event of conflict.

Thank you for your cooperation in this matter.

Sincerely,

Steve Mossberg
Compliance Manager

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STATIONARY SOURCES PROGRAM

United States Operations

P.O. Box 529, Lyons, Colorado 80540, USA, Phone: (303) 823-2100, Fax: (303) 823-2199

From: SHANNON L McMillan
To: Mossberg, Steve
Date: 2/27/03 9:47AM
Subject: FDCP - Blasting activities

Steve:

I spoke with Bob regarding Cemex's proposed FDCP for blasting at Dowe Flats. We would like you to provide us with an example of the weather forecast Cemex would be reviewing to determine if there are favorable conditions for a blast. When would Cemex get the forecast (i.e. day before blast, same day) and what conditions would Cemex look at to determine whether conditions are favorable. Also please provide a brief explanation as to why wind direction is something that Cemex does not want to include in the analysis for favorable conditions.

Please provide this information by March 5, 2003. The Division would like a chance to review the information prior to the March 11 compliance advisory meeting. We can include discussions surrounding the blasting FDCP in this meeting.

This email also serves as notice for an extension for Cemex to supply the revised FDCP for the plant to the Division. A plan will not be required by March 3, 2003 as noted in the Division letter dated February 11, 2003. We can decide on a deadline for the revised plan at the March 11, 2003 meeting.

Please let me know if you have any questions.

Thank you,

Shannon L. McMillan
Environmental Protection Specialist
Air Pollution Control Division
Colorado Dept. of Public Health & Environment
4300 Cherry Creek Drive South
APCD-SS-B1
Denver, Colorado 80246
(303) 692-3259
(303) 782-0278 (fax)
email: shannon.mcmillan@state.co.us

CC: Carr, Paul; Jorgenson, ROBERT

STATE OF COLORADO

Bill Owens, Governor
Douglas H. Benevento, Acting Executive Director

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Colorado Department
of Public Health
and Environment

CERTIFIED MAIL 7001 114040008 9667 6768

October 15, 2002

Mr. Steve Mossberg
Compliance Manager, U.S. Operations
Cemex
5134 Ute Highway
P.O. Box 529
Lyons, Colorado 80540

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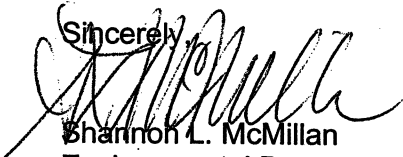
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Sincerely,



Shannon L. McMillan
Environmental Protection Specialist
Air Pollution Control Division

Cc: Bob Jorgenson, APCD
Margie Perkins, APCD
Paul Carr, APCD
Gabi Hoefler, Boulder County Health Department
Richard Cargill



March 21, 2003

CERTIFIED MAIL

Shannon McMillan
Colorado Department of Public Health and Environment
Air Pollution Control Division
APCD-SS-B1
4300 Cherry Creek Drive South
Denver, CO 80246-1530

RE: Revised Dust Control Plan, Blasting

Dear Ms. McMillan:

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Thank you for your cooperation in this matter.

Sincerely,

Steve Mossberg
Compliance Manager

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United States Operations

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Cemex, Inc.
Lyons Cement Plant
5134 Ute Highway
Lyons, CO 80540

BIA 11:30 1-15-03
Bob J + Pam M's (Phone)
Gabi Hoefler

11:00 1-16-03 meeting
w/ CEMEX

Violations of Operating Permit # 95OPBO082

- 1.) On September 30, 2002, fugitive dust emissions in excess of 20% were observed from the clinker pit/clinker load-out drop. This is in violation of Permit # 95OPBO082, P010A- Outdoor Clinker Storage and Handling of Clinker with Front End Loaders, Condition No. 11.6.8, "The drop of the clinker to the outside chute shall be managed with a seal between the hopper and the material during operation to allow effective operation of the dust collector such that emissions are minimized."
- 2.) On September 30, 2002, the haul road behind the A-frame was dry and a source of fugitive dust emissions. This is in violation of Permit #95OPBO082, P010A- Outdoor Clinker Storage and Handling of Clinker with Front End Loaders, Condition No. 11.6.1, "Roads and edges of clinker pile(s) shall be watered, except during below freezing temperatures, at least once per day, or more often, as necessary to abate fugitive particulate emissions..."
- 3.) On November 19, 2002, the paved entrance into the plant was very dusty and contributing to fugitive dust emissions when traveled by haul trucks and vehicles. This is in violation of Permit #95OPBO082, P042-Truck Hauling to Lyons Quarry, Condition No. 13.5.8, "Spillage and accumulations of particulate matter on roadways shall be watered, cleaned up regularly, and managed to insure they do not contribute to fugitive dust emissions."
- 4.) On November 19, 2002, the area south of the A-Frame (clinker-pit load out area) was very dry and dusty, and a water truck was not observed in operation during our visit when it was clearly needed. This is in violation of Permit #95OPBO082, P0101A-Outdoor Clinker Storage and Handling of Clinker with Front End Loaders, Condition No. 11.6.1, "Roads and edges of clinker pile(s) shall be watered, except during below freezing temperatures, at least once per day, or more often, as necessary to abate fugitive particulate emissions." Condition 11.6 also states "...at any time when a fugitive dust problem is observed, the permittee shall take action to correct the problem. The permittee shall maintain records of the date and time of any fugitive dust problem observed, and the type and time of action taken to correct the problem. These records shall be maintained on site for inspection upon request
- 5.) On November 20, 2002, the Clinker drop/load-out chute was venting dust due to being over-filled. This was the second time this problem was noted and again was explained as operator error (the front-end loader operator). This is in violation of Permit #95OPBO082, P010A-Outdoor Clinker Storage and Handling of Clinker with Front End Loaders, Condition No. 11.6.8, "The drop of clinker to the outside chute shall be managed with a seal between the hopper and material during operation to allow effective operation of the dust collector such that emissions are minimized. Condition 11.6 also states "...at any time when a fugitive dust problem is observed, the permittee shall take action to correct the problem. The permittee shall maintain records of the date and time of any fugitive dust problem observed, and the type and time of action taken to correct the problem. These records shall be maintained on site for inspection upon request."

emptied too frequently so drops was too great.

Documented VED?

piles outside the A-Frame problem w/ roadway

Document problem + initiate corrective actions

cc. Boulder County Pam + Gabi

October 1, 2002

Steve Mossberg
Facility Compliance Manager
Cemex, Inc.
P.O. Box 529, Lyons, CO 80540

Re: Complaint Investigation for Fugitive Dust

Dear Mr. Mossberg,

This letter is in response to a complaint investigation conducted at the Cemex Lyons Plant on September 30, 2002 by myself and Pam Milmoie, Air & Waste Coordinator for Boulder County Health. At the time of the inspection, skies were clear and winds were approximately 20-30 mph. A number of areas observed could pose fugitive dust problems. The following sources of fugitive dust were noted during the inspection:

1. The A-frame storage building has excess dust on the roof and piled-up clinker dust around it that should be covered or removed.
2. The Clinker Pit had fugitive dust emissions in excess of 20% due to improper handling by the loader operator. The Clinker Pit should be unloaded on a set schedule rather than using the presence of dust as an indicator for removal.
3. The haul road behind the A-Frame was particularly dusty and should be watered frequently or treated with dust suppressant.
4. Piles of dust were noted under the conveyor belt at the south end of the plant, just before reaching the stacker. This source of potential fugitive emissions has been identified in previous inspections and should be removed daily.
5. Material stockpiles could be a potential source of fugitive emissions during high winds. It was suggested that the plant find a way to water the top of the piles, possibly running the conveyor belt periodically to mist the piles with the automatic mister.

The Boulder County Health Department is requesting a written response by October 8, 2002, demonstrating how and when these issues will be corrected. A follow-up visit will be made to insure the above items are corrected. Feel free to call me to with any questions or concern at 303-441-1147.

Sincerely,

Gabi Hoefler
Boulder County Health Department

CC: Bob Jorgenson, CDPHE, Air Pollution Control Division
Shannon McMillan, CDPHE, Air Pollution Control Division
Richard Cargill



November 26, 2002

Steve Mossberg
P.O. Box 529
Lyons, CO 80540

Dear Mr. Mossberg,

This letter is a follow-up to the site visits made by myself, Pam Milmoie and Bonnie Greenwood on November 19th, 20th and 21st to observe the "tire-burn" stack test. During the visit we noted efforts to improve housekeeping at the plant, (i.e. piles of dust were swept up from under the conveyor belt area). However, there were still some areas of concern. These areas of concern include:

- The entrance into the plant was very dusty on Monday the 19th, extra vigilance is needed when Hwy 66 is sanded.
- The area south of the A-Frame (clinker-pit load out area) continues to be dry and dusty. During our visit on the 19th, a water truck was not observed at the plant when it was clearly needed.
- The clinker drop/load-out chute was venting dust on Wednesday the 20th due to being over-filled. This was explained as operator error (the front-end loader operator) and that they were weighing clinker production on Wednesday due to the tire burn/test. This area has been a problem in past and was pointed out in our previous visit on September 30th.
- An oil leak was visible from the conveyor belt area.

Cemex's Title V Permit #95BOPBO082 stipulates, "...at any time when a fugitive dust problem is observed, the permittee shall take action to correct the problem". The permit also states, "the permittee shall maintain records of the date and time of any fugitive dust problem observed, and the type and time of action taken to correct the problem". Please advise us of the actions you will take and a time frame to correct the above-mentioned issues. If housekeeping practices at the plant continue to be a problem, it may be necessary to confer with CDPH&E on the next appropriate actions.

Sincerely,

Gabi Hoefler
Boulder County Health Department



October 25, 2002

Gabi Hoefler
Boulder County Health Department
3450 Broadway
Boulder, CO 80304

CERTIFIED MAIL -
RETURN RECEIPT REQUESTED

Re: Response to Fugitive Dust Complaint Investigation

Dear Ms. Hoefler:

We are responding to your letter of October 1, 2002 regarding fugitive dust observations during your inspection on September 30, 2002. We share your concerns about the following issues.

- 1) Much of the build-up on top of the A-frame is material that has already solidified. We feel that the dust observed flying around the top of the A-frame while the wind was gusting were heavier particles of material that was trapped in the cracks of the conveyor belt and that dropped onto the roof.

Solution: We will install and evaluate a new type of conveyor belt cleaner that will reduce back spillage.

- 2) The emissions from the clinker pit were caused by the removal of clinker below the level required to maintain a dust seal at the load out point.

Solution: We are retraining all loader operators on proper procedures. Which include: 1) That no more than five minutes after notification the loader operator will check the pit for clinker coming out of the indicator port. 2) When clinker is coming out of the indicator port to remove only enough clinker to stop the clinker from coming out of the port. 3) Do not empty the pit completely, leave enough clinker in the pit to maintain a dust seal at the load out point.

- 3) The haul road behind the A-frame is dusty when dry and is usually watered.

Solution: The road condition is to be observed by the loader operator. If dry road condition exist during use, the road will be watered a minimum of three times per day. If the loader operator sees that more water is needed to control dusting he will immediately call for more watering. During times when the road is not in use watering will be done as need to control possible fugitive dust.



Ms. Gabi Hoefler

Page 2

- 4) Piles of dust under the conveyor belt at the south end of the plant were present following weekend production.

Solution: The areas under the conveyor belt do not need cleaning everyday. Therefore the frequency of the cleanup in this area will be increased to twice a week. Additionally, spot clean up will be performed in problem areas in order to manage piles that could create fugitive dusting.

- 5) We agree that material stockpiles present a source of fugitive dust emissions during high winds.

Solution: During normal operation the material is wet down at Dowe Flats before crushing and over travel on the conveyor to the plant stockpiles. When the material is discharged at the stacker the material falls through a continuous mist to suppress fugitives. We will continue to water the base of the stockpiles as per the State-approved dust control plan.

Sincerely,



Steve Mossberg
Compliance Manager

CC: Shannon McMillan, CDPHE, Air Pollution Control Division
Bob Jorgenson, CDPHE, Air Pollution Control Division

